

24STCV09774 24STCV09774

County: los-angeles

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Case Number: 24STCV09774 Hearing Date: June 24, 2026 Dept: 730

Superior Court of California

County of Los Angeles

Department 730

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HATSUE MEYER, an individual,

Plaintiff,

vs.

15/40 Productions, Ltd., et al.,

Defendants.

Case No.:

24STCV09774

Hearing Date:

June 24, 2026

[TENTATIVE] ORDER RE: MOTION FOR LEAVE TO FILE CROSS-COMPLAINT

I. BACKGROUND

Hatsue Meyer, a private security guard working a film premiere at the TCL Chinese Theater, was struck by a decorative wall prop (the "Pumpkin Wall") and sustained injuries. On April 18, 2024, Meyer ("Plaintiff") filed a Complaint against Defendants 15/40 Productions, Ltd., Chinese Theater Investments, LP and DOES 1 through 100, inclusive for: (1) Premises Liability and (2) General Negligence.

On June 12, 2024, Defendant Chinese Theater Investments, LP filed an Answer to the Complaint.

On June 27, 2024, Defendant 15/40 Productions, Ltd. filed an Answer to the Complaint and Cross-Complaint against Cross-Defendants Edgar Hayrapetyan, Edgar Hay Events, Mindy Weiss Party Consultants, Inc., and ROES 1 to 20, alleging causes of action for: (1) Equitable Indemnity; (2) Contribution; and (3) Declaratory Relief. On August 7, 2024, Cross-Defendant Mindy Weiss Party Consultants, Inc. was dismissed without prejudice.

On September 19, 2024, Cross-Defendant Edgar Hayrapetyan filed an Answer to Defendant 15/40 Productions, Ltd.'s Cross-Complaint. That same day, Cross-Defendant Edgar Hayrapetyan filed a Cross-Complaint against Cross-Defendant Spec Concepts, Inc. and MOES 1 to 100, alleging causes of action for: (1) Comparative Contribution; (2) Total Equitable Indemnity; and (3) Declaratory Relief.

On October 25, 2024, Cross-Defendant Edgar Hay Events, Inc., erroneously sued as Edgar Hay Events filed an Answer to Defendant 15/40 Productions, Ltd.'s Cross-Complaint.

On November 8, 2024, Plaintiff filed an Amendment to the Complaint identifying Chinese Theatres, LLC as Doe 1. That same day, Cross-Defendant Spec Concepts, Inc. filed an Answer to Cross-Defendant Edgar Hayrapetyan's Cross-Complaint.

On December 10, 2024, Cross-Defendant Spec Concepts, Inc. filed a Cross-Complaint against Cross-Defendants Edgar Hayrapetyan, 15/40 Productions, Ltd., and MOES 101 to 110, alleging causes of action for: 1) Equitable Indemnification; (2) Equitable Contribution; (3) Apportionment of Fault; and (4) Declaratory Relief.

On December 17, 2024, Defendant Chinese Theatres, LLC filed an Answer to the Complaint.

On January 13, 2025, Defendant/Cross-Defendant 15/40 Productions, Ltd. filed an Answer to Cross-Defendant Spec Concepts, Inc.'s Cross-Complaint.

On January 23, 2025, Cross-Defendant Edgar Hayrapetyan filed an Answer to Cross-Defendant Spec Concepts, Inc.'s Cross-Complaint.

On March 12, 2026, Defendant Chinese Theatres, LLC (hereinafter, "CTL") filed the instant Motion for Leave to File Cross-Complaint. On June 9, 2026, Defendant/Cross-Defendant 15/40 Productions, Ltd. (hereinafter, "15/40P") filed an Opposition. On June 16, 2026, CTL filed a Reply.

II. LEGAL STANDARD

"A party against whom a cause of action has been asserted in a complaint or cross-complaint may file a cross-complaint...against any of the parties who filed the complaint or cross-complaint against him" before or at the same time as the answer to the complaint or cross-complaint, or any time before the court has set a trial date. (Code Civ. Proc., § 428.10, subd. (a); Code Civ. Proc. § 428.50, subd. (a) [same time as answer]; Code Civ. Proc. § 428.50, subd. (b) [any time

before trial date].) A party may also file a cross-complaint “against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.” (Code Civ. Proc., § 428.10, subd. (b).) A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b).” (Code Civ. Proc. § 428.50, subd. (c).)

If the proposed cross-complaint is compulsory, then leave must be granted so long as the defendant is acting in good faith. (Code Civ. Proc. § 426.50.)² Contrarily, if the proposed cross-complaint is permissive, leave of court may be granted “in the interest of justice” at any time during the course of the action. (Code Civ. Proc. § 428.50, subd. (c).) “Permission to file a permissive cross-complaint is solely within the trial court’s discretion.” (Crocker Nat. Bank v. Emerald (1990) 221 Cal.App.3d 852, 864.) “The purpose of allowing a cross-complaint is to enable all matters in dispute between the parties relating to or depending upon the contract, transaction or subject matter upon which the action is brought or affecting the property to which it relates, to be determined by a single action and by a single judgment. In other words, to avoid a multiplicity of suits and thereby save vexation and expense.” (Bracey v. Gray (1944) 65 Cal.App.2d 282, 285–286.)

III. DISCUSSION

CTL moves for an order granting leave to file a Cross-Complaint against 15/40P, Universal Film Exchanges LLC (“UFE”), and Universal Pictures Marketing (“UPM”) for indemnification, contribution, and declaratory relief on the grounds that³ CTL recently discovered facts revealing and/or confirming that the putative cross-defendants are liable thereto.

Specifically, the Complaint alleges that Plaintiff was on the real property located at 6925 Hollywood Blvd, Los Angeles, CA 90028 (the “Premises”) on or about October 11, 2022, when a display sign belonging to 15/40P fell on her causing her to sustain injuries. (Compl., ¶L-1 at p. 4.) It is undisputed that CTL suspected 15/40P’s liability as early as November 22, 2024, when its insurer sent 15/40P an tender demand for defense and indemnity. (Wolf Decl., ¶4, Ex. C.) Furthermore, CTL filed its Answer to the Complaint a month later but failed to file a Cross-Complaint against 15/40P. However, CTL contends that the depositions of 15/40P’s persons most qualified (“PMQ”), James Joseph O’Banion and Grace Chow, on January 21 and 22, 2026, confirmed 15/40P owned and created, brought, used, and was in control and in charge of the Pumpkin Wall; 15/40P’s agents, contractors and/or employees were the last persons to manipulate and/or move, place, or store the Pumpkin Wall before it fell onto Plaintiff including without having secured the wall to prevent it from falling over; and 15/40P’s PMQs testified that 15/40P was responsible for leaving the Pumpkin Wall alone for a lengthy period of time, in an area where other persons might stand or traverse. (Id., ¶¶2, 5-6, Ex. D.) Moreover, shortly after the deposition of Mr. O’Banion and Ms. Chow, CTL again requested a response to its tender demand for defense and indemnity but received no response. (Wolf Decl., ¶9.) Thus, CTL attempted to resolve this matter informally before seeking leave to file the proposed Cross-Complaint.

With respect to filing the proposed Cross-Complaint against UFE and UPM, CTL argues that Mr. O’Banion and Ms. Chow’s depositions revealed the identity of UFE and UPM, which rented the Premises on behalf of 15/40P pursuant to an ongoing Event Production Master Services Agreement (“EPMSA”) with 15/40P for the event where the alleged incident occurred. (Wolf Decl., ¶¶2, 8, Ex. A.) As such, CTL argues UFE and UPM had knowledge of the incident and the present lawsuit. (Id.) This information could not have been discovered earlier since the depositions had not taken place prior to CTL’s general appearance in this action. Additionally, 15/40P fails to show that it would face prejudice if CTL were allowed to file the proposed Cross-Complaint. In fact, 15/40P admits that it was aware that CTL suspected it was liable for the alleged incident due to the tender demand it received. Likewise, the trial in this matter is set for February 16, 2027 (eight months away), so there is time to file a response to the proposed Cross-Complaint and engage in fact discovery, which closes on January 19, 2027.

IV. CONCLUSION

Based on the foregoing, Defendant Chinese Theatres, LLC’s Motion for Leave to File Cross-Complaint is GRANTED.

Defendant Chinese Theatres, LLC is ordered to give notice.

DATED: June 24, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.